

Shrikrishna Asaramji Revaskar vs Sau. Pushpa Shrikrushna Revaskar And ... on 28 August, 2018

Author: Nitin W. Sambre

Bench: Nitin W. Sambre

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR.

CRI. REVN. NO. 45 OF 2018

Shrikrishna Asaramji Revaskar

-Vs.-

Sau.Pushpa Shrikrushna Revaskar and others

Office notes, Office Memoranda of
Coram, appearances, Court's orders
or directions and Registrar's orders.

Court's or J

Mr. M.V.Amale, counsel for the applicant.

Mr. V. R. Deshpande, counsel for the respondent.

CORAM : NITIN W. SAMBRE, J.

DATE : 28.08.2018.

Heard the respective counsel for the parties.

2. Under section 24 of the Hindu Marriage Act the present applicant suffered an order dated October 19, 2015 whereby he was directed to pay Rs.1,000/- per month towards interim maintenance. It is informed that the said proceedings, which are initiated under section 13 of the Hindu Marriage Act for divorce, are still pending.

3. Thereafter, the present applicant suffered another order under section 127 of the Criminal Procedure Code wherein he was directed to pay the enhanced maintenance of Rs.5,000/- to the respondent-wife and Rs.3,000/- to each of the child vide order passed by the Family Court, Akola.

4. Another order dated January 30, 2017 passed by Judicial Magistrate First Class, Akola in exercise of powers under section 22 of the Protection of Women from Domestic Violence Act, 2005 (hereinafter referred to as "Act of 2005") directed the present applicant to pay compensation of Rs.1,00,000/- and maintenance of Rs.8,000/- per month. As such, the total maintenance which is

directed to be paid by the KHUNTE revn45.18.odt present application is around Rs.20,000/- under various proceedings. The salary certificate which is produced by the applicant on record depicts that his gross salary is Rs.53,295/-, whereas the deduction pursuant to the liability created by him runs into about Rs.21,000/-. Apart from above, it appears that the applicant is owning agricultural property.

5. In the aforesaid background, Shri Amale, learned counsel for the applicant would urge that the order impugned passed under section 127 of the Criminal Procedure Code enhancing maintenance is liable to be set aside, as the applicant is liable to pay maintenance either under the Act of 2005 or under the Criminal Procedure Code. According to him, even otherwise, the maintenance that is ordered is disproportionate to the income of the present applicant from the legal source. He submits that the applicant be either directed to pay maintenance under the Act of 2005 or under section 127 of the Criminal Procedure Code.

6. Per contra, Shri Deshpande, learned counsel for the respondent-wife would urge that the liability qua the deductions carried out from the income/salary of the applicant is self created. According to him, the respondent- wife has 2 issues to maintain and as such considering the gross salary of Rs.53,295/-, the maintenance of Rs.20,000/- awarded by the Courts is reasonable. According to him, the provisions of section 20(1)(d) of the Act of 2005 provides for the monetary relief of maintenance to be paid in addition to the relief claimed under statutory provisions viz. The Criminal Procedure Code, the Hindu Marriage Act, etc.

7. Considered rival submissions. The fact remains that the learned Court of Judicial Magistrate under the Act of 2005 has awarded maintenance of Rs.8,000/- in favour of the respondents and pursuant to the provisions of section 20(1) KHUNTE revn45.18.odt

(d) of Act of 2005, the award of said maintenance is in addition to the maintenance that is awarded under the statutory provisions of the Criminal Procedure Code and the Hindu Marriage Act.

8. The fact remains that under section 24 of the Hindu Marriage Act interim maintenance of Rs.1,000/- was awarded and under section 127 of the Criminal Procedure Code enhanced maintenance of Rs.11,000/- viz. Rs.5,000/- for the respondent-wife and Rs.3,000/- each to non-applicant son and daughter came to be awarded. In the aforesaid background, if the income of the present applicant is considered, which is Rs.53,295/- the maintenance awarded, in my opinion, can't be termed as unreasonable, particularly when the fact remains that the applicant is required to spend 1/3 rd of his income on his person.

9. It is then to be noted that the only interference at this stage of the application the applicant deserves to be granted an adjustment of amount of maintenance ordered under section 127 of the Criminal Procedure Code and section 24 of the Hindu Marriage Act.

10. In my opinion, the maximum to which the respondents are entitled to be under the provisions of section 127 of the Criminal Procedure Code can be worked out to the extent of Rs.18,000/- as the amount of Rs.1,000/- under the Hindu Marriage Act is required to be adjusted in the maintenance

payable under the Criminal Procedure Code. Apart from above, the amount of maintenance awarded under section 127 of the Criminal Procedure Code needs to be reduced by another Rs.1,000/- considering the fact that the applicant is required to maintain his parents as is claimed by him in addition to the medical expenses incurred on his own treatment.

KHUNTE revn45.18.odt

11. That being so, the order impugned is modified to the extent of awarding maintenance of Rs.5,000/- in favour of the respondent-wife is reduced by Rs.1,000/- i.e. Rs.4,000/- and the amount of interim maintenance ordered under section 24 of the Hindu Marriage Act needs to be adjusted against the total amount of maintenance payable to the respondents. With the above observations, the revision stands partly allowed.

JUDGE KHUNTE